Part B Vessel requirements

Part C Life-saving appliances requirements

Chapter VIII Emergency procedures, musters and drills

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Part B Vessel requirements

Part C Life-saving appliances requirements

Chapter VIII Emergency procedures, musters and drills

Chapter IX - Radiocommunications

Part A Application and definitions

Part B Ship requirements

Chapter X Shipborne navigational equipment and arrangements

APPENDIX CERTIFICATES AND RECORD OF EQUIPMENT

1 Form of Safety Certificate for Fishing Vessels

2 Form of Exemption Certificate

3 Form of Supplement to the International Fishing Vessel Safety Certificate

SECTION 3 APPLICATION AND SURVEYS

3.1 Application, exemptions and equivalents (regulations I/1 to 5)

3.1.1 Application: Unless expressly provided otherwise, the provisions of chapter I apply to new vessels.

Notes:

1. Administrations may decide to use gross tonnage (GT) in place of length (L) as the basis for measurement for all chapters. For those Administrations, the Agreement will not apply to vessels
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measurement for all chapters. For those Administrations, the Agreement will not apply to vessels
of less than 300 GT (regulation I/1(2) to (3)).

2. Where a Party has concluded that it is not immediately possible to implement all of the measures provided for in chapters VII, VIII, IX and X on existing vessels, the Party may, in accordance with a plan, progressively implement the provisions of these chapters over a period of up to five or 10

years, depending on the chapter (regulation I/1(4) to (5)).

3. The Agreement offers several possibilities to Administrations to exempt vessels from its requirements. Administrations may, for example, exempt any vessel from any of the requirements of all chapters of the Agreement, provided the vessel complies with adequate safety requirements to ensure the overall safety of the vessel and persons on board and that the vessel is not operating on the high seas (regulation I/3(3)).
MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024)

SOURCE: MSC.571(109).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
on the high seas (regulation I/3(3)).
MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024)
INTERIM GUIDANCE TO ASSIST IN THE IMPLEMENTATION OF THE
CAPE TOWN AGREEMENT OF 2012
MSC 109/22/Add.2
Annex 25, page 11

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CHAPTER I GENERAL PROVISIONS SUMMARY

3.1.2 Chapter I deals with general matters, surveys and certification. It contains general provisions for:
.1 application (regulation 1);

.2 definitions (regulation 2);

.3 exemptions (regulation 3);

.4 equivalents (regulation 4); and

.5 repairs, alterations and modifications (regulation 5).

GUIDANCE FOR IMPLEMENTATION

Tonnage/length equivalents (regulations I/1(2) to (3))

3.1.3 All chapters of the Agreement use vessel length (L) as the basis for measurement. However, many flag Administrations use vessel gross tonnage in their national legislation for that purpose and may wish to use it when implementing the provisions of the Agreement.

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that purpose and may wish to use it when implementing the provisions of the Agreement.

1. The Agreement allows the Administration to use gross tonnage (GT), as specified in regulation I/1(2), in place of length (L) as the basis for measurement for all chapters.

2. Each Party which avails itself of this possibility shall communicate to the

Organization the reasons for that decision.

Progressive implementation (regulations I/1(4) to (5))

3.1.4 It may not be possible for some countries to implement all of the measures of the Agreement at the same time.

3.1.5 A Party to the Agreement that has concluded it is not immediately possible to implement all of the measures provided for in chapters VII, VIII, IX and X on existing vessels may progressively implement those measures in accordance with a plan. The provisions of chapter IX may be implemented over a period of no more than 10 years , the provisions of
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chapter IX may be implemented over a period of no more than 10 years , the provisions of chapters VII, VIII and X over a period of no more than five years.

3.1.6 A "Party" is defined in the Agreement as a State for which the Agreement has entered into force (article 2(a) of the 1993 Torremolinos Protocol). As the term "Party" is used in the provisions concerning the progressive implementation (regulation I/1(4) to (5)) instead of the term "Administration", it indicates that these provisions will only apply when the Agreement comes into force for the State.

3.1.7 Therefore, for a State which deposits an instrument of ratification, acceptance , approval or accession, as appropriate, prior to the entry into force of the Agreement, the above-mentioned progressive implementation period will only start running when the Agreement comes into force for that State.

3.1.8 Each Party which avails itself of this possibility shall in its first communication to the
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Agreement comes into force for that State.

3.1.8 Each Party which avails itself of this possibility shall in its first communication to the Organization provide the information that is specified in regulation I/1(5).

3.1.9 The following table provides a summary of the application of the provisions of the Agreement, including the phased implementation (progressive implementation) on existing vessels.

TABLE 1: APPLICATION SUMMARY

Chapter

Application 1)
New vessels 2) Existing vessels
24-45 m
or
300-950
GT
45 m
or
950 GT
24-45 m
or
300-950 GT
45m
or
950 GT
Time to
implement after
entry into force
3)
I General

4) 4) 0 years
II Construction

N/A
III Stability

N/A
IV Machinery